



SPONSOR: Rep. Shupe & Sen. Lawson
Rep. Dukes

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 32

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO SCHOOL OFFICER FUNDING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 17, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1716L. School officer unit.

(a) For purposes of this section:

(1) "Charter school" means a public school established under Chapter 5 of this title.

(2) "Constable" means an employee or contractor of a school district or charter school who is appointed and commissioned under Chapter 56 of Title 24.

(3) "School district" means a clearly defined geographic subdivision of this State organized for the purpose of administering public education in that area and includes a district specifically created to administer a system of vocational or technical education.

(4) "School officer" means a constable or an SRO.

(5) "School resource officer" or "SRO" means a law-enforcement officer, as defined in § 9200(b) of Title 11, who is stationed in a school district or charter school.

(b) All school districts and charter schools will receive school officer units for employment of school officers as follows:

(1) For a school district, each school in the school district will receive all of the following:

a. One school officer unit for each school in the school district.

b. An additional school officer unit for every 1,000 full-time equivalent students in the school over 1,000 full-time equivalent students.

c. A fractional school officer unit equivalent to the percentage of full-time equivalent students in the school over 1,000 full-time equivalent students but insufficient to meet the threshold for an additional school officer unit under paragraph (b)(1)b. of this section.

(2) For a charter school, the charter school will receive all of the following:

24 a. One school officer unit for the charter school.

25 b. An additional school officer unit for every 1,000 full-time equivalent students in the charter school

26 over 1,000 full-time equivalent students.

27 c. A fractional school officer unit equivalent to the percentage of full-time equivalent students in the

28 charter school over 1,000 full-time equivalent students but insufficient to meet the threshold for an additional

29 school officer unit under paragraph (b)(2)b. of this section.

30 (c) Each student counted in establishing a school officer unit under subsection (b) of this section may be counted

31 only once in a school district or charter school.

32 (d) Funding for a school officer unit or fractional school officer unit must be shared between State and local funds.

33 The State shall pay a maximum of 70% of the annual salary rate and other employment costs for a school officer. The

34 remaining percentage of the annual salary and other employment costs for a school officer must be paid by local funds.

35 (e)(1) A school district or charter school that receives a school officer unit must use the funding appropriated for

36 the school officer unit to employ a school officer.

37 (2) A school district or charter school eligible to receive a fractional school officer unit may do one of the

38 following:

39 a. Combine fractional school officer units to fund a school officer.

40 b. Elect to take a cash option for fractional school officer units up to 30% of a school officer unit. A

41 school district or charter school making the election under this paragraph (e)(2)b. shall use the funding on items

42 authorized under § 4140(b) of this title.

43 (f) A school district or charter school may decline to accept the school officer unit funding.

44 (g) An SRO funded under this section shall comply with the training requirements under § 4112F(d) of this title.

45 (h) The Department of Education may, with the approval of the State Board of Education, adopt regulations to

46 implement, administer, and enforce this section.

SYNOPSIS

This Act establishes school officer units to fund school resource officers or constables in all Delaware public schools.

Specifically, this Act funds at least 1 school officer in each school in a school district and in each charter school, regardless of enrollment, and provides for additional school officers for schools with over 1,000 students.